

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1980

By: Ranson

AS INTRODUCED

An Act relating to higher education; creating the Oklahoma Higher Education Fair Admissions Act; providing for legislative intent; defining terms; prohibiting institutions of higher education from inquiring about certain criminal history for certain applicants; prohibiting certain behavioral conduct inquiries; authorizing State Regents of Higher Education to oversee and enforce act; requiring penalties for violation of act; providing for severability; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3261 of Title 70, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Higher Education Fair Admissions Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3262 of Title 70, unless there
3 is created a duplication in numbering, reads as follows:

4 The purpose of this act is to ensure that individuals seeking
5 higher education in Oklahoma have an equitable opportunity for
6 admission, regardless of their criminal history, under specified
7 conditions.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 3263 of Title 70, unless there
10 is created a duplication in numbering, reads as follows:

11 As used in the Oklahoma Higher Education Fair Admissions Act:

12 1. "Institution of higher education" means any state
13 educational institution supported wholly or in part by legislative
14 appropriations and offering courses of education of any kind beyond
15 or in addition to the twelfth grade, or its equivalent, as such
16 grade is generally understood and accepted in the public school
17 system of Oklahoma, whether called a university, college, junior
18 college, school, or academy; and

19 2. "Online student" means a student who will be attending all
20 classes virtually.

21 SECTION 4. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 3264 of Title 70, unless there
23 is created a duplication in numbering, reads as follows:

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1 A. No institution of higher education shall inquire for the
2 purpose of admission about an applicant's criminal history if the
3 applicant:

4 1. Will be attending the institution of higher education as an
5 online student; and

6 2. Will not be residing on campus at any point during the
7 online student's enrollment.

8 B. Institutions of higher education are prohibited from asking
9 any questions regarding an applicant's prior behavioral conduct as a
10 juvenile.

11 C. The Oklahoma Regents for Higher Education shall oversee and
12 enforce compliance with this act. Institutions of higher education
13 found in violation of this act shall be subject to penalties
14 including, but not limited to, fines and loss of state funding.

15 SECTION 5. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 3265 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 The provisions of the Oklahoma Higher Education Fair Admissions
19 Act are severable and if any part or provision shall be held void,
20 the decision of the court so holding shall not affect or impair any
21 of the remaining parts or provisions of the Oklahoma Higher
22 Education Fair Admissions Act.

23 SECTION 6. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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